

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF

Plaintiff(s),
-against-
Defendant(s).

Index No.

Summons

Date Index No. Purchased:

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is _____,
which is _____

Dated: _____

by _____ /s/ Remy Green

Attorneys for Plaintiff

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

----- X
JOYCE WEBSTER,

Plaintiff,

- against -

CITY OF NEW YORK; NEW YORK POLICE
DEPARTMENT (“NYPD”) DETECTIVE BRIAN C. DUFFY;
NYPD SERGEANT JOHN W. CASCONI; NYPD
DETECTIVE DAVID GOMEZ; NYPD OFFICER RICHARD
HUAMAN; and NYPD OFFICER ANGEL BALBUENA.

Defendant(s).
----- X

VERIFIED COMPLAINT

Index No.

Plaintiff JOYCE WEBSTER by and through her attorneys Gideon Orion Oliver and Cohen
& Green P.L.L.C. hereby complain of Defendant(s) as follows:

PARTIES

1. At all times mentioned herein, Plaintiff Joyce Webster (Ms. Webster; she/her) is and has been a resident of Kings County, City and State of New York.
2. At all relevant times mentioned herein, Defendant, City of New York was and is a municipal corporation duly organized and existing under and by the virtue of the laws of the State of New York and acts by and through its agencies, employees, and agents, including (but not limited to) the New York City Police Department (“NYPD”) and their employees.

3. At all relevant times mentioned herein, NYPD DETECTIVE BRIAN C. DUFFY (Tax Registration No. 920237) was a member of the NYPD involved in the arrest and assault of Plaintiff as described below. Defendant Duffy's name appears on the Plaintiff's Desk Appearance Ticket as the Arresting Officer. He is sued individually and in his official capacity.
4. At all relevant times mentioned herein, NYPD Sergeant JOHN W. CASCONI (Tax Registration No. 925037); NYPD DETECTIVE DAVID GOMEZ (Tax Registration No. 950508); NYPD OFFICER RICHARD HUAMAN (Shield No. 12922, Tax Registration No. 966106); and NYPD OFFICER ANGEL BALBUENA (Shield No. 7582, Tax Registration No. 965944) were members of the NYPD involved in the arrest of Plaintiff as described below. They are sued individually and in their official capacities.
5. The individual Defendants are members of the New York Police Department who unlawfully used excessive force, and arrested and detained Plaintiff in violation of her constitutional rights.
6. At all times hereinafter mentioned, the individual Defendants were employed by the City of New York as members of the NYPD.
7. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
8. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

9. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
10. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.
11. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.
12. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no point did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.
13. Each individual Defendant is sued in their individual and official capacities.

JURISDICTION AND VENUE

14. Venue is properly laid in the Supreme Court of the State of New York, Kings County, including because Plaintiff's claims arose there.

15. Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

STATEMENT OF FACTS

16. Plaintiff Joyce Webster is a 61-year-old resident of the City of New York, County of Kings, and State of New York. She is an organizer with the Crown Heights Tenants Union (“CHTU”) and is an active and well-known member of her community.

17. Ms. Webster has lived in a rent-stabilized unit at 1237 Dean Street, a thirteen-unit brownstone building in Crown Heights, Brooklyn, since 1985.

18. In 2005, Mr. Everton Pierre assumed ownership of 1237 Dean Street.

19. For decades before Mr. Pierre purchased 1237 Dean Street, Ms. Webster had worked with her fellow tenants to advocate for improved living conditions in the building.

20. Since becoming the landlord of 1237 Dean Street, Mr. Pierre has been fined by the City of New York due to myriad housing code violations. The property was subject to a consent decree in 2022 which required Mr. Pierre to restore utility services to the tenants.

21. At present, there are 229 open violations with the Department of Housing Preservation and Development pertaining to the property at 1237 Dean Street.

22. Ms. Webster consistently requested standard repairs and maintenance from Mr. Pierre which either resulted in paltry, temporary fixes to household problems or were ignored entirely.

23. Prior to the date of the incident, Ms. Webster had routinely been subjected to various forms of harassment by Mr. Pierre in response to her requests. He frequently harassed her both

verbally and sexually. Despite paying her bills, Ms. Webster's utilities were frequently turned off.

24. Ms. Webster suffered injuries after being bitten by rats following Mr. Pierre's failure to address a building-wide infestation.

25. Because Ms. Webster spent years bringing Mr. Pierre's illegal activity to the attention of the City while residing in her low-rent apartment, Mr. Pierre has spent years attempting to use the court system and the police to force Ms. Webster out of her apartment.

26. For example, prior to this incident, Mr. Pierre repeatedly called the NYPD falsely alleging that Ms. Webster was doing various illegal things, none of which had previously resulted in Ms. Webster's arrest.

27. Ms. Webster also repeatedly called the NYPD to truthfully report Mr. Pierre's actual illegal actions towards her.

28. Some of the details of Ms. Webster's work to improve her apartment's living conditions and Mr. Pierre's retaliation are discussed in the article Amba Guerguerian, "In Crown Heights, Tenant Union Members Learn from Each Other's Experiences with Abusive Landlords," *The Independent* (Jun. 14, 2022).

29. In the early afternoon, on September 19, 2021, Ms. Webster was present in her home at 1237 Dean Street, Kings County, City and State of New York.

30. At this time, Mr. Pierre had arranged for the building's water supply to be turned off.

31. Ms. Webster called the non-emergency line 3-1-1 to request that the water be turned back on for the building. Prior to this incident, Ms. Webster frequently had to call 3-1-1 directly to request that utility services be restored to the building.

32. At approximately 11:00 a.m., two NYPD Members believed to be Defendants Gomez, Huaman, and/or Balbuena arrived at 1237 Dean Street and placed Ms. Webster under arrest without explanation.
33. The NYPD members applied metal handcuffs to Ms. Webster's wrists with excessive tightness before shoving her into the police car.
34. Ms. Webster notified the officers that she suffers from asthma and requested to bring her inhaler, which the officers refused.
35. There was no justification for the Defendants to use any force on Ms. Webster.
36. The NYPD officers took Ms. Webster to the 77th Precinct building, where she was told that Mr. Pierre had called 9-1-1 and reported that Ms. Webster threatened to have her boyfriend shoot him.
37. Ms. Webster was not involved in any violent, threatening, or illegal behavior. Ms. Webster does not have a boyfriend, nor had she ever made any comments similar to those alleged by Mr. Pierre.
38. Ms. Webster explained that Mr. Pierre was making a false complaint to the NYPD because she had called 3-1-1 that day, and his history of false complaints.
39. Ms. Webster asked to go home multiple times, for which the NYPD members, including Defendant Cascone mocked and harassed her.
40. Ms. Webster was arrested and detained for approximately six hours.
41. During her time in custody, Ms. Webster was deprived of meaningful access to food, water, and a phone call, as well as other basic necessities.
42. NYPD members additionally unreasonably delayed Ms. Webster's access to a bathroom. Because she was not allowed to use the restroom for a substantial period of time, Ms.

Webster briefly urinated on herself in the presence of the NYPD members. The NYPD members mocked Ms. Webster's requests to use the restroom before she was taken to the restroom.

43. An NYPD member, believed to be Defendant Balbuena, escorted Ms. Webster to the bathroom. The entire time she was in the bathroom, Ms. Webster remained handcuffed. The NYPD member attempted to remove her pants in the bathroom, despite Ms. Webster's objections and insistence that she was perfectly capable of using the restroom on her own. Because the NYPD member refused to remove Ms. Webster's handcuffs during this time, Ms. Webster was subjected to humiliation and an invasion of her privacy.
44. Defendant Duffy eventually issued Ms. Webster a Desk Appearance Ticket, and released her from custody.
45. Defendant Duffy swore out a complaint against Ms. Webster, Docket No. CR-016290-21KN.
46. Ms. Webster was forced to return to court for almost a year, until her charges were dismissed on or around August 22, 2022.
47. The Defendants' conduct directly and proximately caused physical and emotional injuries, including, *inter alia*, pain and swelling from excessively tight handcuffs, swollen feet, humiliation, anxiety, and depression.

FIRST CLAIM FOR RELIEF

Excessive Force

Pursuant to 42 U.S.C. §1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

48. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.
49. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.
50. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.
51. The illegal conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF

Unlawful Seizure / False Arrest

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

52. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.
53. Defendants' seizure of the Plaintiff herein was done without any judicial warrant authorizing them to seize Plaintiff, was unreasonable, and was done without privilege or lawful justification.
54. Plaintiff did not consent and was conscious of her confinement by Defendants.
55. Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.
56. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological

and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

57. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF

Municipal Liability

Pursuant to 42 U.S.C §1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiff's Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

58. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

59. The facts as pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to: uses of excessive force, unlawful seizure/false arrest, fair trial rights and malicious prosecution.

60. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to: (a) formal policies, rules, and procedures of Defendant City; (b) actions and decisions by Defendant City's policymaking agents; (c) customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute de facto policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City and other policymaking officials; (d) Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

FOURTH CLAIM FOR RELIEF**Deprivation of Fair Trial Rights**

Pursuant to 42 U.S.C. § 1983 for Defendants' Violation of Plaintiffs' Rights Protected Under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution

61. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

62. As a result of the Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damages and injured Plaintiff.

63. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FIFTH CLAIM FOR RELIEF**Malicious Prosecution**

Pursuant to 42 U.S.C. § 1983 for Defendants' Violation of Plaintiffs' Rights Protected Under the Fourth and Fourteenth Amendments to the United States Constitution

64. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

65. Upon information and belief, Defendants failed to fully consider the relevant evidence—including exculpatory evidence.

66. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff, including by providing false information in accusatory instruments.

67. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

68. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

69. Notwithstanding the misconduct of the Defendants, the criminal charges against Plaintiff were dropped on grounds consistent with Plaintiff's innocence.
70. As a result of the Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damages and injured Plaintiff.
71. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

NINTH CLAIM FOR RELIEF

N.Y.C. Admin. C. §§8-801 *et seq.*, "Qualified Immunity Repeal" Claims Against All Defendants

72. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.
73. The New York City Administrative Code §8-803 provides as follows in relevant part:
- a. "A covered individual who, under color of any law, ordinance, rule, regulation, custom or usage, subjects or causes to be subjected, including through failure to intervene, any other natural person to the deprivation of any right that is created, granted or protected by section 8-802 is liable to the person aggrieved for legal or equitable relief or any other appropriate relief."
 - b. "The employer of a covered individual who, under color of any law, ordinance, rule, regulation, custom or usage, subjects or causes to be subjected, including through failure to intervene, any other natural person to the deprivation of any right that is created, granted or protected by section 8-802 is liable, based upon the

conduct of such covered individual, to the person aggrieved for legal or equitable relief or any other appropriate relief.”

- c. “A person aggrieved may make a claim pursuant to subdivision a of this section in a civil action in any court of competent jurisdiction by filing a complaint setting forth facts pertaining to the deprivation of any right created, granted or protected by section 8-802 and requesting such relief as such person aggrieved considers necessary to insure the full enjoyment of such right.”

74. Given the fact that a “covered individual” under §8-801 means “[any] employee of the police department,” the Individual NYPD Member Defendants are all considered covered individuals. §8-801.

75. Plaintiff is a “person aggrieved” because she was (at minimum) “allegedly subjected to, or allegedly caused to be subjected to, the deprivation of a right created, granted, or protected by §8-802 by a covered individual even if the only injury allegedly suffered by such natural person is the deprivation of such right.” *Id.*

76. Defendant City is liable as an employer, as set out above.

77. Defendants’ uses of force against Plaintiff were unjustified, unlawful, and objectively unreasonable, considering the facts and circumstances before the Defendants.

78. As a result of Defendants’ acts and omissions, Defendants deprived Plaintiff of Plaintiff’s federal, state, and/or other legal rights; caused Plaintiff’s bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

79. Further, it is not a defense to liability under §§8-801 *et seq.* that a covered individual has qualified immunity or any other substantially equivalent immunity.

80. Thus, the Court should award both compensatory and punitive damages against all parties (including the City), and all reasonable fees and court expenses pursuant to §8-805 of the Administrative Code.

JURY DEMAND

81. Plaintiff requests a jury trial on all issues capable of being tried and determined by a jury.

DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York, and punitive damages pursuant to 42 U.S.C. §1988 and N.Y.C. Admin. C. §8-805(1)(ii);
- iii. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, N.Y.C. Admin. L. §8-805(2), and New York common law; and
- iv. Such other and further relief as the Court may deem equitable, just, and proper to remedy Defendant's unlawful conduct.

Dated: Brooklyn, New York
September 17, 2024

COHEN&GREEN P.L.L.C

By: 

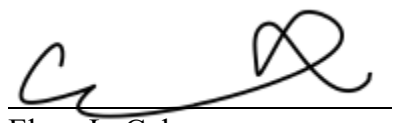
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ATTORNEY'S VERIFICATION

I, ELENA L. COHEN, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff does not reside in the County (Queens) where I maintain my offices.

Dated: Ridgewood (Queens), New York
September 18, 2024



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